

Digital Services Act

Transparency Report for GitHub

February 2025

Introduction

This DSA Transparency Report is responsive to the obligations under DSA Article 15(1), Article 24(1), and Article 42(2)-(3). This Report is submitted by GitHub for its services designated as Online Platforms, GitHub and npm, and provides information regarding the following topics as they pertain to the European Union:

- Updates to the Terms of Service
- Content Moderation at GitHub's Initiative
- Content Moderation & Automated Systems
- Content Moderation following a User Report
- Content Moderation Appeals
- Government Requests
- Out of Court Settlement Body Disputes

GitHub is a software code hosting and development platform that allows its users to host and collaborate on open source and proprietary software projects. Although GitHub has some basic social features (such as the ability to follow other users or comment on posts), it is primarily a platform for productivity and collaboration on source code rather than for sharing and amplifying general content. The GitHub platform is targeted towards an audience of developers, which tend to be students, hobbyists, and professionals that are creating and collaborating with one another on software code.

GitHub also maintains and supports npm, a JavaScript package manager. Open source developers throughout the world use npm to share and borrow packages, and many organizations use npm to manage private development as well. Developers use npm to access a large public repository or registry of JavaScript software, upload and download packages, and run the Command Line Interface (CLI) on a terminal.

npm is similarly geared towards productivity and targeted towards an audience of developers, specifically hobbyists, and professionals. npm is highly functional and serves more of the role of internet infrastructure than a social content sharing community; it has even less social features than GitHub. A user profile solely allows users to have an avatar, username, link to Twitter and GitHub social profiles, and list the public packages they maintain. npm does not have any features or options for commenting or discussion among users.

Updates to the Terms of Service

During the reporting period, GitHub updated its [Acceptable Use Policies on Misinformation and Disinformation](#) to clarify that it does not allow any projects that are designed for, encourage, promote, support, or suggest in any way the use of synthetic or manipulated media for the creation of non-consensual intimate imagery (NCII) or any content that would constitute misinformation or disinformation. This policy update was made in response to concern over the potential misuse of synthetic media tools and intended to strike a balance between disallowing misuse while enabling legitimate research on these technologies.

While many of GitHub's policies and procedures apply to npm, npm has its own Terms of Use. There have been no changes to npm's Terms of Use during the reporting period that affect its terms for content moderation.

Content Moderation at GitHub's Initiative

GitHub provides the information below in response to DSA Article 15(1)(c). This section reports data regarding content moderation GitHub engaged in on its own initiative, absent a user report.

GitHub is invested in keeping the platform safe by proactively detecting violating content according to our [Terms of Service](#) and [Acceptable Use Policies](#). The content moderation that GitHub performs at its own initiative includes both proactive and automated content detection for Child Sexual Exploitation and Abuse (CSEA) and Terrorist and Violent Extremist Content (TVEC). That detection is detailed below. If content is deemed in violation of GitHub's Acceptable Use Policies against TVEC, it will be restricted from visibility and the content owner suspended from the platform. If content is deemed in violation of GitHub's prohibitions against CSEAI, it will be permanently removed from the service and reported to the proper authorities as legally required.

GitHub employs a variety of measures, detailed below, to proactively detect violating content. GitHub relies upon hash matching using Microsoft's automated PhotoDNA

service for automated detection of CSEA and TVEC. The automated detection method is run on content when content is shared with other users, or when legally required.

Human Reviewers

GitHub's Acceptable Use Policies codify the definitions of specific content and conduct violations under our Terms of Service. GitHub's Trust and Safety team then uses those policies to create internal policy and enforcement guides that provide operational guidance on how reviewers should analyze reported content. Consistency in our review and enforcement methods is maintained by several manual processes, including:

- Multiple independent review of account conduct and content utilizing internal escalation channels, including processes and procedures for appeals of decisions with additional review to ensure consistency.
- Regular review and discussion of nuanced or edge cases by Trust and Safety leadership and Legal teams to ensure consistency in how such cases are handled and to make any adjustments to internal enforcement guides where appropriate.
- Bi-weekly legal and operational reviews that address any issues found by either of the above that require additional analysis or internal or external policy changes.

It is also important to acknowledge the assistance that is provided to our operational team due to the mentally and emotionally taxing nature of their work. GitHub ensures that the review of the most extreme content, such as CSEA and TVEC, is strictly limited to the smallest group of reviewers possible. GitHub also offers generous benefits, such as unlimited PTO and flexible working hours, along with access to fully covered mental health and well-being services.

The table below reports information regarding the number of pieces of content GitHub actioned during the reporting period absent a user report, organized by policy violation. GitHub is currently working on the functionality to track geodata in order to report EU-specific stats and is reporting globally for this first report. GitHub assigns each piece of content a single policy violation. For each category of policy violation, GitHub reports the number of pieces of content actioned and which actions were taken.

GitHub did not have any government-designated trusted flaggers for the EU for this time period, and therefore there are no reports coming from that source.

Policy Violation	Number of measures taken at the	Number of measures taken after detection	Visibility restriction Removal	Visibility restriction Disable	Visibility restriction Interaction restricted	Account restriction Suspension
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	provider's own initiative	with solely automated means				
Illegal or Harmful Speech	799	799				799
Negative Effects on Civic Discourse or Elections	21,121	21,121			21,109	12
Nonconsensual Behaviour	15	15				15
Pornography or Sexualized Content	398	398			14	384
Protection of Minors	308	308	156	4	27	121
Risk for public security	47	47	2		1	44
Scams and Fraud	4,530,326	4,530,326	8		276	4,530,042
Scope of Platform Services	152,852	152,852	2		152,078	772
Violence	14	14			9	5

npm's Code of Conduct, Acceptable Use, and Acceptable Content policies similarly define violations under npm's Terms of Use. However, the nature of npm's purpose as a Javascript package manager and its lack of basic social functions such as commenting, means that content moderation efforts are focused heavily on spam, malware and other inauthentic and deceptive uses rather than violations around violence, public safety, and protection of minors.

The table below reports information regarding the number of pieces of content npm actioned during the reporting period absent a user report, organized by policy violation. npm assigns each piece of content a single policy violation. For each category of policy violation, npm reports the number of pieces of content actioned and which actions were taken.

npm did not have any government-designated trusted flaggers for the EU for this time period, and therefore there are no reports coming from that source.

Policy Violation	Number of measures taken at the provider's own initiative	Number of measures taken after detection with solely automated means	Visibility restriction Removal	Visibility restriction Interaction restricted	Account restriction Suspension
Scope of Platform Services	3,209	3,209	1,168	1,440	601

Proactive Content Moderation

GitHub's methods for proactive content moderation include lexicon-based searches of well known terminology for violations of CSEA, TVEC, and other content incompatible

with our Terms of Service, linked accounts from IP and metadata of violating content, and using open source (OSINT) and third party intelligence along with information related to content shared on other user-generated content platforms. This enables GitHub to proactively surface and detect many types of violating content on the platform which reduces the risk of users experiencing such content. Any CSEA discovered proactively is manually tracked and reported to the National Center for Missing & Exploited Children (NCMEC).

Content Moderation & Automated Systems

GitHub provides the information below in response to DSA Articles 15(1)(e) and 42(2)(c).

GitHub utilizes Microsoft's automated systems that leverage PhotoDNA for the detection of CSEA. The specifics of the technical implementation of PhotoDNA hash matching is covered below.

The in-scope service generates a hash for the content to be scanned and submits to a central service for matching. If a match is detected, the in-scope service is informed of the match and responds by sending the content and its associated metadata to the central service.

The central service orchestrates any and all human reviews that are required by policy and, if the content is confirmed to be violative, the centralized service will communicate the need to take any associated content-level actions (e.g. blocking sharing or deleting the content) back to the in-scope service. If a violation is confirmed on GitHub, it will be blocked from sharing on the service and permanently removed from the service if legally required.

The central service then performs any additional required processing including notification of the action to the content owner, account suspension (if warranted), reporting any CSEA discovered to the National Center for Missing & Exploited Children (NCMEC), and persisting the evidence to enable adjudicating appeals and responding to any resulting law enforcement data requests.

There are two primary contributors to the effectiveness of hash matching systems that leverage PhotoDNA: the correctness of the hashing algorithm itself (the technology) and the management of the set of hashes against which content is matched (the content). The technology itself is content agnostic.

The correctness of the hashing algorithm itself is ensured by validating that any updates do not alter its results on a known set of inputs (i.e., we confirm that the hash calculations return the same result, which is necessary to achieve 100% recall).

Hash matching leverages databases of reference hashes of known CSEA and Terrorism images or videos when assessing potentially violative content to find copies of the same content.

The following information relates to how the performance of the content (i.e. reference hashes) is tested and monitored. This is separate and distinct from the performance of the technology and is impacted by match distances used and the quality and consistency of human reviews both by Microsoft and by third parties that generate hashes that Microsoft leverages.

Reference hashes are updated and maintained in the following ways:

- Human review improves the accuracy of the underlying hashes by considering what the reviewer determines.
- In addition, in the case of PhotoDNA, hashes that are very similar are grouped to ensure they provide the same result.

As hash sharing entities provide new hashes, they are merged with the database to ensure consistent results.

Microsoft has no specific acceptance threshold for the rate at which matched content is determined to be CSEA or Terrorism content beyond our goal to improve the rate over time. Microsoft targets a rate of less than 5% for matched content that is determined to be benign, because historically, it has been able to achieve that rate without losing recall. Given the nature of hash matching and the inherent differences of both policies and training between Microsoft and our industry peers, we cannot expect 100% precision. As a result, our thresholds are informed by historical performance, and we carefully weigh any improvements in precision in either rate against the potential for loss of recall.

The precise purpose of these automated means is to prevent the dissemination of known CSEA and TVEC on GitHub.

Microsoft leverages a broader human review process in conjunction with hash-based detection. A matched image is directed to a human moderation queue (depending on the harm type of the matching reference hash) where one or more moderators may independently review the content for quality control purposes. In order for a hash signature to be added to Microsoft's internal database of verified hashes, the associated image or video frame must have been reviewed by at least two human reviewers.

The table below reports how many pieces of content were automatically processed and how many were manually processed by GitHub, broken down by how they were detected.

	Github
Number of measures not taken by automated means	271,084
Number of measures solely taken by automated means	4,529,491

Because npm's primary use case is as a package manager for Javascript code, libraries, and tools, it is not conducive to sharing photo or video content that may contain CSEA or TVEC. As such, npm's automated scanning focuses on identifying spam, malware, and other inauthentic or deceptive uses of the service. npm's automated scanning identifies evolving patterns of inauthentic activity used by actors abusing the platform to propagate spam, malware, or other abuses of the service. If content or an account on npm has been disabled or restricted, users may seek reinstatement and appeal the action using GitHub's Appeal and Reinstatement form to submit a request. The accuracy and possible rate of error associated with the automated detection of inauthentic activity on npm can be indicated by reviewing the data on appeals and reinstatements.

The table below reports how many pieces of content were automatically processed and how many were manually processed by npm, broken down by how they were detected.

	NPM
Number of measures not taken by automated means	5,431

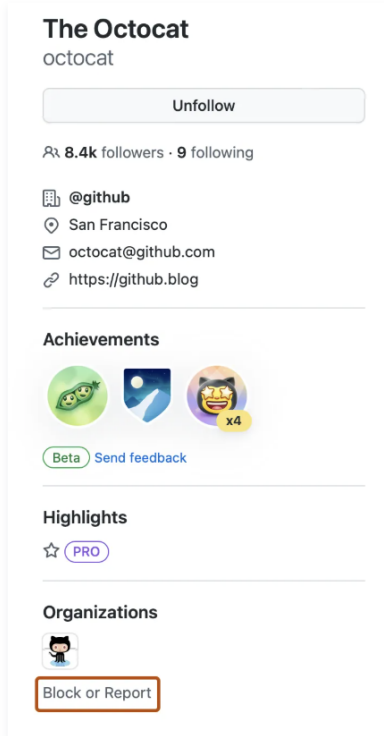
Content Moderation Following a User Report

GitHub provides the information below in response to DSA Articles 15(1)(b)-(c) and 41(2)(a)-(b).

GitHub users can report other users, organizations, repositories, issues, discussions, and comments for abuse or spam. For all reports, users are directed to select "report abuse" which leads to the report abuse or spam report.

Reporting a user [↗](#)

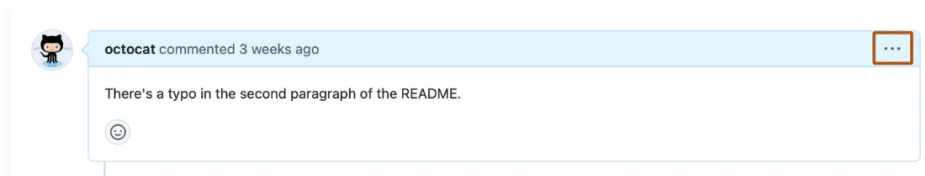
- 1 Visit the user's profile page.
- 2 In the left sidebar, below the user's profile information, click **Block or Report**.



- 3 Click **Report abuse**.
- 4 Complete the contact form to tell GitHub Support about the user's behavior, then click **Submit**.

Reporting an issue or pull request [🔗](#)

- 1 Navigate to the issue or pull request you'd like to report.
- 2 In the upper-right corner of the issue or pull request, click **⋮**, then click **Report content**.



- 3 You may see options to **Report to repository admins** or **Report abuse to GitHub Support**. If not, skip to the next step.
 - To report the content to GitHub Support, click **Report abuse to GitHub Support**.
 - To report the content to repository maintainers, use the **Choose a reason** dropdown to select a reason, then click **Report to repository admins**. Your report has been submitted.
- 4 Complete the "Report content" form, then click **Send request**.

On the report abuse or spam form, users are directed to provide their email address, select a category of abuse, and detail about the abusive content or behavior.

Report abuse or spam

Code collaboration should be safe for everyone, so we take abuse and harassment seriously at GitHub. We want to hear about harmful behavior on the site that violates GitHub's [Terms of Service](#). Let us know about a user or content you're concerned with. Rest assured, we'll keep your identifying information private.

Want to block a user?

You can hide a user's content and notifications. Read more about blocking a user from your [personal account](#) or [organization](#).

From *

You are submitting a report regarding *Genio40921*. The content you are reporting will be included in your report:

<https://github.com/github/site-policy/issues/1001#issue-2680749545>

Please select a category for your issue: *

Sexual Exploitation of Minors

NCII and Intimate Extortion

Gratuitously Violent Content

Hate Speech or Discrimination

Suicide and Self-injury

Terrorist or Violent Extremist Content

Threats of Violence

Sexual Content

Spam or inauthentic Activity

Disruptive Content

Active Malware or Exploits

Phishing

Bullying or Harassment

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pecially helpful to include specific examples in the

The table below reports information regarding the number of reports GitHub received during the reporting period by user-selected report reason. For each report reason, GitHub provides the number of reports received, the pieces of content underlying those reports, and the number of reports where GitHub determined the content violated its policies.

GitHub did not have any government-designated trusted flaggers for the EU for this time period, and therefore there are no reports coming from that source.

Policy Violation	Number of notices received	Number of specific items of information included in the total number of notices	Median time to take action	Number of actions taken on the basis of the terms and conditions of the service
Illegal or Harmful Speech	3,504	3,504		482
Negative Effects on Civic Discourse or Elections	2,924	2,924		978
Nonconsensual Behaviour	9,224	9,224		2,490
Pornography or Sexualized Content	3,046	3,046		1,525
Protection of Minors	934	934		122
Risk for public security				18
Scams and Fraud	125,231	125,231		16,649
Scope of Platform Services	74,907	74,907	0.0	72,304
Self Harm				4
Violence	570	570		123

npm users are encouraged to report malware directly to package maintainers as well as the npm Security team by selecting “report malware” on the package page and completing the online form. For urgent security issues, spam, copyright violations, abuse, and other issues, npm users are directed to open a support ticket.

Contact Us

Get help with the npm registry or your npm account.

Please contact us if you need help with the npm registry or with your npm account, if you are reporting security concerns in an npm product, or if you need to report malicious or abusive behavior in a package in the registry.

How can we help?

I'm reporting spam, abuse or a security issue



My Security Issue

I am reporting spam or abuse in a package on npmjs.com



Asterisk (*) Indicates Required Field

Name *

Email *

Subject *

Package *

Version *

How can we help? *

Please describe exactly what you're trying to accomplish.



The table below reports information regarding the number of reports npm received during the reporting period by user-selected report reason. For each report reason, npm provides the number of reports received, the pieces of content underlying those reports, and the number of reports where npm determined the content violated its policies.

npm did not have any government-designated trusted flaggers for the EU for this time period, and therefore there are no reports coming from that source.

Policy Violation	Number of notices received	Number of specific items of information included in the total number of notices	Median time to take action	Number of actions taken on the basis of the terms and conditions of the service
Scams and Fraud	502	502		
Scope of Platform Services	1,818	1,818	0.0	2,222

Content Moderation Appeals

GitHub provides an internal complaint-handling process where users can submit requests for reinstatement or provide additional information to appeal a moderation decision. This internal complaint-handling system is available to users of both GitHub and npm. Both Appeals and Reinstatements may arise in relation to decisions to disable or limit access to content or an account, including decisions whether or not to:

- Remove, disable access to, or restrict visibility of content
- Suspend access to an account
- Suspend access to the service, in whole or in part
- Suspend, terminate or otherwise restrict the ability to monetize content

A “Reinstatement” is where a user wishes to regain access to their account or content and is willing to make any necessary changes to address the violation and agrees not to violate our terms going forward. An “Appeal” is where a user disputes that a violation has occurred and can provide additional information to show that a different decision should have been reached. Users seeking Reinstatement or to Appeal an enforcement action may submit an [Appeal and Reinstatement form](#). Appeals must be made within 6 months of the enforcement action. GitHub tracks Appeals and Reinstatements in its [Transparency Center](#) and provides users with information of their legal rights for out-of-court dispute settlement under the Digital Services Act.

Appeal and Reinstatement

Please fill out the form below if your account or content has been hidden, disabled, or limited in any other way by GitHub and you would like to [request reinstatement or appeal our decision](#).

In order to prevent unnecessary processing delays, please do not send duplicate requests and be sure to contact us from the email associated with your impacted account if possible. If your content was impacted by a DMCA notice, and you'd like to make changes or dispute that notice, please [see this guide](#).

NOTE: For any other enquiries regarding your GitHub account (such as restoring a deleted account, login issues, etc) please raise a support ticket here instead: <https://support.github.com/request>

From *

Does your claim involve content on GitHub or npm.js? *

What is the username and repository or package name that was impacted? *

Why are you requesting reinstatement? If you are requesting support for your account not related to moderation limits made on your account by GitHub please raise a [support ticket](#) instead. *

Have you previously contacted GitHub about this claim? *

Would you like to provide any additional information or context that would be helpful for our review of your reinstatement request?

☐ I have reviewed and understand the GitHub [Acceptable Use Policies](#) and [Community Guidelines](#).

	Github	NPM
Number of complaints submitted to the internal-complaints mechanism	1,208.0	109.0

Government Requests

GitHub provides the information below in response to DSA Article 15(1)(a)

This section reports data on requests from Member State government authorities: (1) to remove content and (2) to provide user account information. GitHub carefully considers all government requests for content removal and account information and works to mitigate any implications they may have on freedom of expression and human rights. For government demands, GitHub employs safeguards to ensure any actions taken are narrow, specific, submitted in writing, and based on valid legal orders. GitHub shares the official government request that led to a takedown in the [government takedowns](#)

[repository](#). Through its parent company, Microsoft, GitHub also engages with broader civil society organizations on best practices related to government requests and participates in human rights impact assessments.

The table below reports information regarding the number of requests GitHub received from Member State government authorities to remove content during the reporting period, organized by Member State and illegal content type. Government requests to remove content include requests reporting violations of our terms of service or violations of local law. GitHub only received one government request during this reporting period.

GitHub's government takedown policy applies to npm as well. If there were to be a government takedown for content shared on npm, GitHub would post it in its government takedown repository.

npm did not receive any government requests from Member States during this reporting period.

Out of Court Settlement Body Disputes

GitHub provides the information below in response to DSA Article 24(1)(a).

Neither GitHub nor npm received notice of any disputes submitted to an out-of-court dispute settlement body during the reporting period.

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